

of the tort of malicious prosecution.” (*Hagberg*, 32 Cal.4th at 355.) But, because there can be no claim of malicious prosecution without some “action” or “proceeding” that was first “commenced” and then “favorably terminated” (*Van Audenhove v. Perry* (2017) 11 Cal.App.5th 915, 919), Plaintiff is unable to assert a claim of malicious prosecution against Defendants.

GABRIELLA DRAGGES; ET AL. vs. STARBUCKS, LLC
Case No. FCS058279

Motion to Deem Matters Admitted

TENTATIVE RULING

The Parties are to appear.

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